

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

Between Lumen Cloud Pty Ltd ("Provider") and Tessellate Retail Limited ("Subscriber"), dated 3 September 2025.

SECTION 1 SUBSCRIPTION

1.1 Provider grants Subscriber a non-exclusive, non-transferable right to access the Platform during the Subscription Term.

1.2 Subscriber shall not (a) resell the Platform, (b) reverse engineer any part of it, or (c) use it to build a competing product.

SECTION 2 DATA PROTECTION

2.1 Each party shall comply with Data Protection Laws.

2.2 Provider processes Subscriber Personal Data as processor on Subscriber's documented instructions, as set out in the Data Processing Addendum.

2.3 Provider shall not transfer Subscriber Personal Data outside the United Kingdom or the European Economic Area without Subscriber's prior written consent and appropriate safeguards.

The parties acknowledge that this provision has been negotiated at arm's length and reflects the commercial allocation of risk agreed between them. Nothing in this clause shall be construed to limit any liability which cannot be limited by applicable law. Each party shall bear its own costs in connection with the matters described herein.

SECTION 3 EXCLUSIVITY

3.1 During the Subscription Term Subscriber shall not procure a substantially similar platform from any third party for the Territory.

3.2 The restriction in clause 3.1 falls away if Provider fails to meet the Service Levels in any three (3) consecutive months.

SECTION 4 INTELLECTUAL PROPERTY

4.1 Provider retains all intellectual property rights in the Platform.

4.2 Subscriber retains all intellectual property rights in Subscriber Data and grants Provider a licence to use it solely to provide the Platform.

4.3 Any improvements to the Platform arising from Subscriber feedback shall vest in Provider.

SECTION 5 CHANGE OF CONTROL

Provider may terminate this Agreement on thirty (30) days' notice if Subscriber undergoes a Change of Control in favour of a competitor of Provider.

SECTION 6 FEES

6.1 Fees are payable annually in advance.

6.2 Provider may increase the Fees on each anniversary by no more than the greater of five per cent (5%) and the increase in CPI.

The parties acknowledge that this provision has been negotiated at arm's length and reflects the commercial allocation of risk agreed between them. Nothing in this clause shall be construed to limit any liability which cannot be limited by applicable law. Each party shall bear its own costs in connection with the matters described herein.

SECTION 7 GOVERNING LAW

This Agreement is governed by the laws of New South Wales, Australia.